

CV-26-004126 GOLDEN HOMESTEAD LLC vs WEBB, GLENN – Petitioner's Petition Re: Judicial Abandonment of Mobile Home – HEARING REQUIRED.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: On April 22, 2026, Petitioner filed a petition for judicial declaration of abandonment. The petition is unopposed. The Court will hold a hearing on the petition. The Court is inclined to GRANT the unopposed petition and enter a judgment of abandonment, award damages in the amount of \$24.50 per day from June 1, 2024 to the date of judgment, and award reasonable attorney's fees and costs. Moving party to submit a proposed order and a declaration detailing its request for costs and fees order within five court days of this ruling. "If, at the hearing, the petitioner shows by a preponderance of the evidence that the criteria for an abandoned mobilehome has been satisfied and no party establishes an interest therein at the hearing and tenders all past due rent and other charges, the court shall enter a judgment of abandonment, determine the amount of charges to which the petitioner is entitled, and award attorney's fees and costs to the petitioner. For purposes of this subdivision, an interest in the mobilehome shall be established by evidence of a right to possession of the mobilehome or a security or ownership interest in the mobilehome." (Civ. Code, § 798.61.) The petition concerns a mobile home located at the following address: 2513 Don Pedro Road Space #23, Ceres, California, 95307. The petition avers that Respondents Glenn and Shirley Webb ("Respondents") were the last known occupants of the mobile home; Respondents failed to pay rent for at least 60 days; Petitioner believes that Respondents are the legal owners of the mobile home; the mobile home is unoccupied and appears to be abandoned; and that the fair rental value for the mobile home space is the amount of \$24.50 per day from June 1, 2024 to the date of judgment. The petition prays for the following relief: a judicial declaration of abandonment; damages in the sum of \$24.50 per day from June 1, 2024 to the date of judgment; reasonable attorney's fees and costs; and, an order that Petitioner may dispose of the mobile home. The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: e703b7ef85cd218f69af06ce7bcd892b38a116dd1ae14a978ab6131d8fe31d4a

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